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25VECV03568 ROQUEFRIAS V FORD

[TENTATIVE] ORDER: Plaintiff Rodolfo Roquefrias'

Motion to Compel Further Responses to Special Interrogatories, Set One, is GRANTED in part and DENIED in part. Defendant Ford Motor Company is ORDERED to respond under oath to SROG Nos. 10, 26, and 44 (subject to the limitations set forth herein) without objections within 20 days. The motion is denied as to the remainder of the requests at issue. Plaintiff Rodolfo Roquefrias' request for monetary sanctions is DENIED.

Plaintiff Rodolfo Roquefrias' Motion to Compel Further Responses to Requests for Production, Set One, is GRANTED in part and DENIED in part. Defendant Ford Motor Company is ORDERED to respond with Code compliant language under oath to RFD Nos. 16, 18, and 20-30 (subject to the limitations set forth herein) and produce documents without objections within 20 days. The motion is denied as to the remainder of the requests at issue. Plaintiff Rodolfo Roquefrias' request for monetary sanctions is DENIED.

Introduction

Plaintiff Rodolfo Roquefrias (Plaintiff) moved to compel further responses to Special Interrogatories, Set One, against Defendant Ford Motor Company (Defendant). Plaintiff further requested monetary sanctions of \$2,655 against Defendant and its Counsel.

Plaintiff separately moved to compel further responses to Request for Production of Documents, Set One, (RFP) against Defendant. Plaintiff further requested monetary sanctions of \$3,105 against Defendant and

its Counsel.

Defendant opposes.

Discussion

The propounding party may bring motions to compel further responses to interrogatories and requests for production if it believes the responses received are evasive or incomplete or if the objections raised are meritless or too general. (Code Civ. Proc., secs. 2030.300(a) and 2031.310(a).) As to RFP motions, the motion must set forth specific facts showing good cause justifying the discovery sought. (Code Civ. Proc., sec. 2031.310(b)(1).) A document response must consist of: 1) an agreement to comply, stating whether the productions or inspection will be allowed "in whole or in part," and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a statement stating a diligent search and reasonable inquiry has been made in an effort to locate the item demanded; and the reason the party is unable to comply: (i.e., the document: never existed; or has been lost or stolen; or has been destroyed; or is not in the possession, custody or control of the responding party, in which case, the response must state the name and address of anyone believed to have the document; or, 3) objections and specification of withheld documents. (Code Civ. Proc., secs. 2031.210(a) , 2031.220, 2031.230, 2031.240, 2031.270, 2031.280(b).)

Motion

to Compel Further Responses to Special Interrogatories

Plaintiff moves to compel Ford to provide further responses to Special Interrogatories (SROG) Nos. 10, 26, 44-45, 47, and 49-58.

SROG No. 10 seeks information regarding Ford's contention that Plaintiff's vehicle does not qualify for repurchase. Defendant stated that the facts supporting Ford's contention are contained in Ford's initial disclosures and Song- Beverly compliant document production. Ford also objected on the grounds that it is overly broad, unduly burdensome, and seeking irrelevant information because it is not limited to a reasonable or relevant

timeframe, to the components or systems at issue, or to the allegations in Plaintiff's Complaint. Ford also objected to the extent that this Interrogatory sought premature disclosure of information developed by Ford's experts/consultants, and to the extent that it seeks information protected from disclosure by the attorney-client privilege and/or the work product doctrine.

Defendant's answer is evasive, and it has not justified its boilerplate objections.

Although Defendant may properly invoke Code of Civil Procedure section 2030.230 to the extent that the making of a compilation, abstract, audit, or summary of the document production would cost substantially the same for Plaintiff as it would Defendant, it is clear from the plain language of the statute that its application requires the responding party to "specify the writings from which the answer may be derived or ascertained." The documents Defendant do not specify where the answers can be found.

To the extent Defendant has asserted an objection based upon attorney-client privilege and work product, Defendant as the party asserting the protections of the attorney-client privilege and the work product doctrine, has the burden of presenting evidence to establish that the privilege and/or doctrine exists on these facts and covers the requested information. (Zimmerman v. Sup. Ct. (2013) 220 Cal.App.4th 389, 402; Santa Rosa Memorial Hospital v. Sup. Ct. (1985) 174 Cal.App.3d 711, 727-728.) Defendant has not done so.

As such, the Court compels a further response to SROG No. 10.

SROG No. 26 seeks information regarding the training provided from 2023 to present for evaluating pre-litigation repurchase requests. Plaintiff contends these documents are relevant to Defendant's willfulness.

In response, Ford again referred to certain documents produced with Ford's Code of Civil Procedure section 871 disclosures. It further stated that it will produce, subject to protective order, policies and procedures for Ford's Customer Relationship Center ("CRC"), which handles communications from customers to Ford regarding vehicle concerns. Ford also objected overly broad, unduly burdensome, and seeking irrelevant

information because it is not limited to a reasonable or relevant timeframe, the components or systems at issue, or to the allegations in Plaintiff's Complaint, and because Plaintiff did not request a repurchase or replacement of the subject vehicle before filing this lawsuit. Ford also objected on the ground that it is protected by the attorney-client privilege and/or the work product doctrine.

Again, Defendant's answer is evasive, incomplete and Defendant has failed to justify its objections. Further, while Defendant argues that Plaintiff never requested a repurchase or replacement, the information is relevant for willfulness. Moreover, while Defendant invokes Code of Civil Procedure section 2030.230, Defendant failed to specify the writings from which the answer may be derived or ascertained.

Thus, the Court compels a further response to SROG No. 26.

SROG Nos. 44-45 seek information regarding the repairs per thousand vehicles sold for every component in the subject vehicle and repairs per thousand vehicles sold data for Ford Bronco vehicles.

Ford objects to this Interrogatory as overly broad, unduly burdensome, and seeking irrelevant information because it is not limited to a relevant timeframe, to any vehicle or customer, any specific claim, any alleged malfunction, problem, or concern, to Plaintiff or the allegations in Plaintiff's Complaint. Moreover, Ford argues this Interrogatory contains no subject matter for any repairs per thousand vehicles sold and contains no specific identification of any of the multiple vehicle systems contained in the 2023 Ford F-150, which are in turn comprised of hundreds, if not thousands, of individual components and parts, much less to any of the specific components or parts at issue in this case for which information regarding repairs per thousand vehicles is sought.

The Court finds the Special Interrogatories are relevant to the issues in this case and the information requested is important for establishing Plaintiffs' claims and damages. However, the Court agrees that the request must be narrowed to the issues in Plaintiff's claims and to Ford F-150 vehicle at issue in this case. Thus, SROG No. 44 is granted but narrowed to the repairs relating to Plaintiff's claims in California for the same make and model Ford F-150 (not personal identifiers are required), and SROG No. 45 is DENIED because it seeks

information regarding the repairs of Broncos, not F-150s.

SROG No. 47 seeks information as to Defendant's efforts to preserve relevant and discoverable information in this matter (including, but not limited to, any preservation letters, the custodians upon to whom such preservation letters were sent, the efforts undertaken to prevent against the deletion or destruction of information).

Ford objected on the grounds that it is overly broad, seeks the discovery of information or documents that are not relevant to the issues in this lawsuit, and improperly seeking discovery on discovery. Plaintiff has not identified any documents that Ford has allegedly failed to produce in this case or to otherwise articulate why information relating to Ford's records management program is relevant in this case. Ford further objected because Ford's records management program is confidential and proprietary, and public disclosure of such information could cause competitive harm to Ford because it would disclose Ford's record keeping system and the types of documentation it generates as part of its business. In addition, Ford objected on grounds of the attorney-client privilege and/or the work-product doctrine.

Defendant has justified its objections. The Court agrees this request is overbroad because Plaintiff has not identified any documents that Defendant has failed to produce, and thus, this interrogatory seeks irrelevant information.

The Court does not compel a further response to SROG No. 47.

SROG Nos. 49-54 seek information about the identities of individuals responsible for the operation and maintenance of certain Ford databases (customer contact call logs (49); electronically stored pre-litigation repurchase analysis (50); policies and procedures for evaluating a repurchase or replacement (51); electronically stored technical assistance cases with authorized repair facilities (52); consumer complaints for defects in materials and workmanship (53); warranty claim records (54)).

Ford objects to this Interrogatory because it is overly broad, unduly burdensome, and seeks information that is not relevant, as it is not limited to the vehicle at issue in this case or to the allegations in Plaintiff's Complaint, and seeks the discovery of information or documents that

are not relevant to the issues in this lawsuit, including how Ford maintains its corporate records and information network. This is particularly true because Plaintiff did not contact Ford before filing this lawsuit. Ford also objects to this Interrogatory because Ford's information network is confidential and proprietary, and public disclosure of such information could cause competitive harm to Ford or harm to its security network. In addition, Ford objects to this Interrogatory because it seeks information protected from disclosure by the attorney-client privilege and/or the work-product doctrine.

The Court also agrees these requests are overbroad and seeks irrelevant information as there was no contact with Ford about these issues and it does not limit the information to the subject vehicle or the claims in this case.

The motion is DENIED as to SROG Nos. 49-54.

SROG Nos. 55-58 seek information about Ford's document retention or destruction policies. Defendant objects that this Interrogatory is overly broad, unduly burdensome, and seeking irrelevant documents, particularly because it is not limited to the subject vehicle or its related program, or to the allegations at issue in this case. Further, Plaintiff has not identified any documents that Ford has allegedly failed to produce in this case or to otherwise articulate why information relating to Ford's records management program used by persons who evaluate repurchase or replacement requests in California from 2023 to present is relevant in this case. In addition, Ford objected on grounds of the attorney-client privilege and/or the work-product doctrine, and that this is confidential and proprietary information.

As noted above, Plaintiff has not identified any documents that have been destroyed in this case; thus, these requests are overbroad and seek information that is not relevant to Plaintiff's claims.

Plaintiff's motion to compel further responses to SROG Nos. 55-58 is DENIED.

Plaintiffs' request for monetary sanctions denied as Defendant properly asserted objections to some of the requests and opposed this motion with substantial justification.

Motion

to Compel Further Responses to Request for Production

Plaintiff seeks a further response to RFD Nos. 16-18, 20-30, 47, and 50-59

Plaintiff argues the RFPs at issue for this motion include requests seeking Ford's policies and procedures related to its compliance with the Song-Beverly Act.

RFP No. 16 seeks each written warranty for the subject vehicle.

Defendant responded it will comply with this Request, in part, and produce all documents responsive to this Request that are located following a reasonable and diligent search and to which no objection is made. Accordingly, Ford refers Plaintiff to the New Vehicle Limited Warranty Guide for the 2023 Ford F-150 vehicle. Ford also objected on the grounds that it is overly broad, unduly burdensome, and seeks irrelevant documents because it is not limited to any specific written warranty, to the concerns related to the subject vehicle contained in Plaintiff's repair or service records and to the allegations in Plaintiff's Complaint.

While Defendant has produced some documents, Plaintiff is entitled to a code-compliant, verified supplemental response confirming whether all requested portions have been produced. (See Code Civ. Proc., sec. 2031.240(a).) Defendant must clarify the scope of its production and identify any withheld materials. (See *id.*, sec. 2031.240(b)(1).) But the request is narrowed to the warranties at issue in this case.

The Court compels a further response to RFP No. 16.

RFP No. 17 seeks all documents constituting the warranty claims policies and procedures from 2023 to the present.

Ford responded it will comply with this Request, in part, and produce all documents responsive to this Request that are located following a reasonable and diligent search and to which no objection is made. Accordingly, Ford refers Plaintiff to the Warranty Policy and Procedure Manuals applicable to 2023 to present, subject to a protective order, which were produced with Ford's §871 disclosure. Ford also objected, arguing it seeks

irrelevant documents because it is not limited to a reasonable or relevant timeframe, to any particular warranty claim at issue, to Plaintiff, to the subject vehicle, or to any particular vehicle, and because there is no allegation regarding the warranty policy and procedure manuals in this case.

Plaintiff has not identified which specific warranty claims policies and procedures it seeks, nor has the request been tailored to the subject vehicle, or defects at issue. Thus, the motion is denied as to No. 17.

RFP No. 18 seeks Defendant's workshop manual(s) for the subject vehicle.

Ford responded it will comply with this Request, in part, and produce all documents responsive to this Request that are located following a reasonable and diligent search and to which no objection is made. Accordingly, Ford refers Plaintiff to the Workshop Manual applicable to 2023 Ford F-150 vehicles, which was produced with Ford's §871 disclosure. Beyond this, Ford objects and will not further comply with this Request as it is overly broad, unduly burdensome, and seeks irrelevant documents because it is not limited to the components or allegations at issue in this case and because the workshop manual is hundreds of pages long and contains information as to other vehicle parts, components or systems that are not alleged to be defective.

While Defendant has produced some documents, Plaintiff is entitled to a code-compliant, verified supplemental response confirming whether all requested portions have been produced. Defendant must clarify the scope of its production and identify any withheld materials. But the Court notes the request must be narrowed to the defects at issue in this case.

The Court compels a further response to RFP No. 18.

RFP Nos. 20-22 seek Ford's policies and procedures for evaluating a consumer's complaint or request for a refund of money paid toward a vehicle, or determining whether a vehicle is eligible for repurchase.

While Defendant has produced some documents, Plaintiff is entitled to a code-compliant, verified supplemental response confirming whether all requested portions have been produced. Defendant must clarify the scope of its production and identify any withheld materials. However, RFP No. 20 will be narrowed as to the same defects claimed by plaintiff in vehicles of

the same year, make and model.

The Court compels further responses to Nos. 20-22.

Nos. 23-24 seek all training materials regarding the handling of consumer requests for a vehicle repurchase that were given to the person that evaluated the request for the subject vehicle, and all training materials for the handling of consumer requests for a vehicle repurchase.

No. 25 seeks all scripts and flow charts that Defendant utilizes in handling California consumer requests for a vehicle repurchase or replacement since 2023.

While Defendant has produced some documents, Plaintiff is entitled to a code-compliant, verified supplemental response confirming whether all requested portions have been produced. Defendant must clarify the scope of its production and identify any withheld materials.

The Court compels further responses to Nos. 23-25.

RFP No. 26 seeks All DOCUMENTS that evidence YOUR policies, procedures, and parameters for determining what constitutes a repair presentation to determine eligibility for a vehicle repurchase pursuant to the Song-Beverly Act since 2023.

RFP No. 27 seeks All DOCUMENTS describing YOUR policies, procedures, and parameters for determining what constitutes a “non-conformity” to determine eligibility for a vehicle repurchase pursuant to the Song-Beverly since 2023.

RFP No. 28 seeks All DOCUMENTS describing YOUR policies, procedures, and parameters for determining what constitutes a “substantial impairment” of a vehicle’s use, value, or safety to determine eligibility for a vehicle repurchase pursuant to the Song-Beverly Act since 2023.

RFP No. 29 seeks All DOCUMENTS describing YOUR policies, procedures, and parameters for defining what constitutes a reasonable number of repair attempts to determine eligibility for a vehicle repurchase pursuant to the Song-Beverly Act since 2023.

RFP No. 30 seeks All DOCUMENTS describing YOUR policies, procedures, and parameters for establishing the time frame to respond to a vehicle repurchase request pursuant to the Song-Beverly Act since 2023.

The Court finds there is good cause for the requests and Ford did not justify its objections. But the request will be narrowed to the same make and model of Plaintiff's Vehicle at any time from 2023 to 2025. Ford should also confirm whether all requested portions have been produced and clarify the scope of its production and identify any withheld materials. Thus, the Court compels further responses to RFP Nos. 26-30.

RFP No. 47 seeks documents regarding Ford's efforts to preserve relevant and discoverable information, including preservation letters, the custodians to whom such preservation letters were sent and efforts taken to prevent against deletion or destruction of information.

For the same reasons noted above in SROG No. 47, the Court does not compel a further response to this request. There is no good cause.

Request Nos. 50-59 seek all documents regarding Ford's policies and procedures related to the recovery backups of Ford's databases and regarding Ford's document retention policies and procedures for: (1) evaluating requests for repurchase; (2) customer call logs; (3) customer complaints; (4) technical assistance cases; and (5) customer warranty claim records, from 2023 to the present. Ford properly objected to these Requests because they are not reasonably calculated to lead to admissible evidence given that there has not been any loss of data this case, nor have Plaintiff alleged any such loss.

Plaintiff argues Requests 50-54 seek documents concerning the backup procedures for critical business data, such as customer call logs, which are standard in most industries. Requesting this documentation is simply asking for transparency about the established procedures. Asking for the backup policies and procedures are crucial to ensuring the chain of custody of evidence. Without proper backup, there is a risk of data loss, which can undermine the case's integrity and credibility.

Plaintiff argues Requests Nos. 55-59 seek documents

concerning Defendant Ford's retention policies and procedures, as well as the databases where it stores policies and procedures used to evaluate repurchase or replacement requests under the Song-Beverly Consumer Warranty Act, from 2023 to present. Plaintiff argues these documents are directly relevant to evaluating how Defendant handles such requests and whether there are patterns, changes, or omissions in its internal policies.

The Court finds that Plaintiff has not set forth good cause of these requests. Nothing in the record shows this information is required. For example, there is no claim that Defendant has engaged in the spoliation of evidence. The Court does not compel further responses to RFP Nos. 50-59.

Plaintiffs' request for monetary sanctions denied as Plaintiff has not provided good cause to obtain some of the requests for discovery and Defendant opposed this motion with substantial justification.

Accordingly, Plaintiff's motions to compel further are granted in part and denied in part.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.